

then, provided the execution of it was after the marriage, it will be rectified by the articles (*e*); but if the execution of it was prior to the marriage, the Court will presume the parties to have entered into a different agreement (*f*), unless the agreement expressly state itself to be made in pursuance of the articles, when that presumption will [*114] be *rebutted, and the settlement will be rectified (*a*), or unless it can be otherwise shown that the settlement was intended to be in conformity with the articles, and there is clear and satisfactory evidence that the discrepancy has arisen from mistake (*b*).

Limitation of the husband's property to the heirs of the body of the wife.— Under the law as it stood prior to the Fines and Recoveries Act (*c*), a strict settlement was not decreed, where the property of the *husband* was limited to the heirs of the body of the *wife*; for this created an entail which neither husband nor wife could bar without the concurrence of the other, and the intent might have been, that the husband and the wife *jointly* should have the power of destroying the entail (*d*); but it is conceived, that as to articles executed subsequently to the Act referred to, the case would be otherwise (*e*).

Where the settlement also contains a limitation to the parent for life, with remainder to first and other sons in tail.— Nor will the Court read heirs of the body as first and other sons, where such a construction is negatived by anything in the articles themselves: as if one part of an estate be limited to

(*e*) *Streatfield v. Streatfield*, Cas. t. Talb. 176; *Warrick v. Warrick*, 3 Atk. 293, *per* Lord Hardwicke; *Legg v. Goldwire*, Cas. t. Talb. 20, *per* Lord Talbot; *Burton v. Hastings*, Gilb. Eq. Rep. 113; S. C. 1 Eq. Ca. Ab. 393, overruled.

(*f*) *Legg v. Goldwire*, Cas. t. Talbot, 20; and see *Warrick v. Warrick*, 3 Atk. 291.

(*a*) *Honor v. Honor*, 1 P. W. 123; *Roberts v. Kingsley*, 1 Ves. 238; *West v. Errissey*, 2 P. W. 349; but not it seems against a purchaser, *Warrick v. Warrick*, 2 Atk. 291.

(*b*) *Bold v. Hutchinson*, 5 De G. M. & G. 505.

(*c*) See 3 & 4 W. 4. c. 74, ss. 16, 17.

(*d*) *Howel v. Howel*, 2 Ves. 358; *Whateley v. Kemp*, cited *ib.*; *Honor v. Honor*, 1 P. W. 123; *Green v. Ekins*, 2 Atk. 477, *per* Lord Hardwicke; *Highway v. Banner*, 1 B. C. C. 587, *per* Sir L. Kenyon; *Sackville-West v. Viscount Holmesdale*, 4 L. R. H. L. 555, *per* Lord Hatherley.

(*e*) *Rochfort v. Fitzmaurice*, 2 Drur. & War. 19.